

# COMMERCIAL CREDIT FACILITY AND TERM LOAN AGREEMENT

This Agreement is entered into by and between Keystone Commercial Bank (Lender) and Pioneer Heavy Industries Corp. (Borrower).

1. PRINCIPAL FACILITY AND DISBURSEMENT. Lender establishes a single-draw term loan facility in the principal amount of \$1,500,000.00 USD disbursed on the Closing Date.

2. INTEREST RATE AND COMPOUNDING LATE CHARGES. Interest accrues at 6.75% per annum. Past due payments accrue default interest of 2.5% per month compounded monthly.

3. FINANCIAL COVENANTS AND DSCR RATIO. Borrower shall maintain a minimum Debt Service Coverage Ratio (DSCR) of not less than 1.25 to 1.00 at the close of each fiscal quarter.

4. EVENTS OF DEFAULT AND ACCELERATION. Upon any payment default continuing for ten (10) days, Lender may declare all unpaid principal and accrued interest immediately due.